

SENATE BILL No. 133

DIGEST OF INTRODUCED BILL

Citations Affected: IC 5-2-20-3.

Synopsis: Protection from immigration status disclosure. Provides that a law enforcement officer may not request verification of the citizenship or immigration status of an individual from federal immigration authorities if the law enforcement officer determines that the individual: (1) has requested emergency medical assistance; or (2) acted in concert with another person who requested emergency medical assistance for an individual who reasonably appeared to be in need of medical assistance. Provides that the individual shall cooperate with emergency medical assistance personnel and law enforcement.

Effective: July 1, 2026.

Ford J.D., Pol Jr.

December 11, 2025, read first time and referred to Committee on Judiciary.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 133

A BILL FOR AN ACT to amend the Indiana Code concerning state and local administration.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 5-2-20-3, AS ADDED BY P.L.171-2011,
2 SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 3. **(a)** A law enforcement agency or law
4 enforcement officer may not request verification of the citizenship or
5 immigration status of an individual from federal immigration
6 authorities if the individual has contact with the law enforcement
7 agency or law enforcement officer only:

8 (1) as a witness to or victim of a crime; or

9 (2) for purposes of reporting a crime.

10 **(b) A law enforcement officer may not request verification of**
11 **the citizenship or immigration status of an individual from federal**
12 **immigration authorities if the law enforcement officer, after**
13 **making a reasonable determination and considering the facts and**
14 **surrounding circumstances, reasonably believes that all of the**
15 **following apply:**

16 **(1) The law enforcement officer has contact with the**
17 **individual because the individual either:**



- 1 **(A) requested emergency medical assistance; or**
2 **(B) acted in concert with another person who requested**
3 **emergency medical assistance;**
4 **for an individual who reasonably appeared to be in need of**
5 **medical assistance.**
6 **(2) The individual described in subdivision (1):**
7 **(A) provided the individual's full name;**
8 **(B) provided any other relevant information requested by**
9 **the law enforcement officer;**
10 **(C) remained at the scene with the individual who**
11 **reasonably appeared to be in need of medical assistance**
12 **until emergency medical assistance arrived; and**
13 **(D) cooperated with emergency medical assistance**
14 **personnel and law enforcement officers at the scene.**

